

Third Cause of Action – Detrimental Reliance

Defendant argues that this claim is not a standalone cause of action and that this claim fails because “Defendant cannot have simultaneously tried to induce Plaintiff to stay and leave.” (Demurrer MPA, p. 7.) Plaintiff argues that “Defendant’s demurrer to the detrimental reliance cause of action is based on the same arguments as its demurrer to the fraud cause of action. Therefore, it should also be denied.” (Opposition, p. 5.) In the Reply, Defendant argues that Plaintiff’s argument is insufficient and contains only legal conclusions. (Reply, p. 4.)

Defendant’s argument that the Court should sustain the demurrer to this cause of action because Defendant cannot have simultaneously tried to induce Plaintiff to stay and leave is not persuasive. Parties are allowed to plead in the alternative. (*Adams v. Paul* (1995) 11 Cal.4th 583, 593 [“a party may plead in the alternative and may make inconsistent allegations.”].)

However, the Court concludes that that “detrimental reliance” does not appear to be a standalone cause of action. (See generally, California Causes of Action §§ 1-1:00 – 63:50.) Detrimental reliance is an element for fraud, promissory estoppel, and equitable estoppel. The Court suspects that Plaintiff is seeking to assert a promissory estoppel or unjust enrichment claim, but it is not clear and Plaintiff’s argument in the Opposition does not provide clarification. The Court sustains Defendant’s demurrer to Plaintiff’s third cause of action for detrimental reliance, with leave to amend.

Ruling

For the reasons discussed above, the Court **SUSTAINS** Defendant’s demurrer to the first (breach of contract), second (fraud), and third (detrimental reliance) causes of action, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc., § 472b; California Rules of Court, rule 3.1320(g).)

10. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF’S 1ST AMENDED COMPLAINT
MOTION FILED TO/FOR**

FILED BY:

TENTATIVE RULING:

Before the Court is a motion to strike filed by defendant Ramanujan Group LLC, as successor in interest to Blackhawk Centralcal LLC (“Defendant”), which seeks to strike a request for punitive damages and a request for attorney fees from the prayer for relief of the first amended complaint (“FAC”) filed by plaintiff Kiki Brows (“Plaintiff”).

For the reasons set forth below, the Court **GRANTS** Defendant’s motion to strike as to the punitive damages allegation, with leave to amend, and **DENIES** the motion to strike as to the attorneys’ fees allegation. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.

Meet and Confer

The meet and confer requirement has been satisfied. (Kevin K. Dinh Decl. ISO Demurrer, ¶¶ 2-3; Code Civ. Proc., § 435.5.)

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (FAC, ¶¶ 1, 7.) Later, the lease was extended so as to be valid until November 30, 2023, and again until November 30, 2024. (*Ibid.*) The lease had an option to renew, and Plaintiff exercised the renewal and was told that the renewal was granted. (*Id.*, at ¶ 8.) Relying on the confirmation of renewal, Plaintiff opted out of moving his business and allowed other opportunities to pass. (*Id.*, at ¶ 9.) Plaintiff made the required lease payment for annual minimum rent (\$19,468.20), which was accepted, but was unable to note that the lease was being renewed. (*Id.*, at ¶¶ 10-11.) Subsequently, Defendant refused to provide a signed renewal, and demanded a new term be added to the lease, which required Plaintiff to get permission from a competing tenant to be allowed to continue its business in the same business complex it had been in for over ten years. (*Id.*, at ¶¶ 12-14.) In addition, Plaintiff has contacted Defendant to obtain reimbursement for repairs and Defendant has not yet responded. (*Id.*, at ¶ 15.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed the FAC, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff's First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed an unlawful detainer action (Case No. N25-1537). On February 20, 2026, this Court denied a motion to consolidate the unlawful detainer action with the instant action.

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Punitive Damages

Defendant argues that Plaintiff has pled no facts to support a prayer for relief for punitive damages. (Motion to Strike, pp. 5-8; Reply, p. 2.) Plaintiff argues that a properly pleaded fraud cause of action will support a claim for punitive damages and that unless the demurrer to the fraud cause of action is sustained by the court in the concurrently filed demurrer of Defendant, then the motion to strike

should be denied. (Opposition, p. 3.)

A motion to strike is properly granted when a complaint fails to allege facts to state a prima facie claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-168.) Under Civil Code section 3294, punitive damages may be awarded in “an action for the breach of an obligation not arising from contract” where Plaintiff proves the “defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(a).) The statute by its terms is stated in the disjunctive, and pleading facts supporting any one of the grounds for punitive damages (oppression, fraud or malice) is sufficient. (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235 Cal.App.3d 1220, 1238-1239 [fraud alone sufficient for punitive damages].)

Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294(c)(3) [emphasis added].) Alleging an intentional tort alone is not enough to support a claim for punitive damages: “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves, supra*, 157 Cal.App.3d at 166.)

Here, the Court has issued a tentative ruling sustaining Defendant’s demurrer to Plaintiff’s fraud cause of action with leave to amend. In addition, the Court finds that the FAC’s allegations relating to oppression, fraud, or malice are minimal and insufficient to support the requested punitive damages. (FAC, ¶¶ 1-27.) The Court GRANTS Defendant’s motion to strike the punitive damages allegation, with leave to amend.

Attorneys’ Fees

Defendant argues that Plaintiff cannot recover attorneys’ fees because it has not alleged a valid contractual or statutory basis for the recovery of attorney fees. (Motion to Strike, p. 8; Reply, p. 3.) Plaintiff argues that the lease provides for attorney fees to the prevailing party and asserts that it will amend to attach the lease to the complaint. (Opposition, p. 3.)

There is no pleading standard to allege attorneys’ fees. Unsupported attorneys’ fees allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) “There is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533; *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497 [error to strike attorney fees sought under Code of Civil Procedure section 1021.5, because there is no pleading requirement involved].)

Here, the Court DENIES Defendant’s motion to strike Plaintiff’s attorneys’ fees allegation from the prayer for relief due to the principle that unsupported attorneys’ fees allegation need not be stricken. Nevertheless, Plaintiff is encouraged to attach the lease with the attorneys’ fees clause to the second amended complaint.

Ruling

For the reasons discussed above, the Court **DENIES** Defendant’s motion to strike as to the attorneys’

fees allegation appearing at page 6, lines 2-3 of the FAC.

The Court **GRANTS** Defendant's motion to strike as to the punitive damages allegation appearing at page 6, lines 3-4 of the FAC, with leave to amend.

Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C25-00437
CASE NAME: RYLAND BROOKS VS. DOES 1 TO 100, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE RE: RYLAND BROOKS**
FILED BY: BROOKS, RYLAND

TENTATIVE RULING:

Summary

Petitioner Charlotte Brook's Petition for Approval of Compromise of Minor Ryland Brooks ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on March 18, 2026.

Background

On December 18, 2025, Petitioner Charlotte Brooks, parent and guardian *ad litem* for her son, Ryan Brooks (DOB 2/11/2012), filed this Petition through counsel Brian D. Sudano to compromise the claim that Minor had against a substitute teacher, Ms. Thomas, who works for the Defendant Brentwood Unified School District, related to an accident that occurred on January 17, 2024 at Bristow Middle School. In that incident, Minor sustained injuries including a scratch to his face when Ms. Thomas attempted to remove Minor's cell phone from him. Petitioner represents that Minor has received treatment and has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$5,000, of which \$3,132.10 is to be paid to Petitioner behalf of Minor. The deduction of \$1867.90 represents a deduction from the settlement to satisfy attorney's fees and costs incurred in reaching this compromise. Petitioner prepared a proposed order, which the Court will execute.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 18, 2025. No appearance is required at the hearing on March 18, 2026.

12. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: DELTA DENTAL

TENTATIVE RULING:

Summary

Defendant Delta Dental's ("Delta") Motion to Quash Service of Summons and Complaint initiated by